

for hearing on September 23, 2024. That date is confirmed. Today's hearing has been **VACATED. No appearance is necessary on today's calendar.**

ESTATE OF RUSSELL BUHAY

Case Number: 22PB-0031616

This matter is on calendar for hearing on the First and Final Account and Report of Executor and Petition for Final Distribution and Allowance of Attorney's Fees. The matter has been properly noticed, with proof of service on file. The Petition fails to indicate whether notice was provided to the Franchise Tax Board as required by Probate Code § 9202(c). It also incorrectly calculates counsel's compensation. Receipts are incorrect, as they improperly include a loan of \$3000.15 to the estate. This is not an income receipt, as it does not increase the value of the estate. Receipts are \$18,933.31. The calculation of statutory compensation fails to take into account the losses totaling \$27,958.25. The statutory compensation is \$8,693.73. The Court also notes that there is a disbursement of \$900 for attorney's fees that is not explained. This matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for further proceedings on the First and Final Account. Petitioner shall file an Amended First and Final Account that addresses the above issues. Petitioner shall also file and timely serve a new notice of hearing for the continued hearing date. Finally, Petitioner shall submit a new proposed order. **No appearance is necessary on today's calendar.**

ESTATE OF JAMES CALLAHAN

Case Number: 24PB-0032410

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Partial Inventory and Appraisal filed on August 12, 2024, is accepted by the Court. A Status Report has been filed requesting additional time to file the Final Inventory and Appraisal. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of the filing of the Final Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future date of May 12, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF FRANKLIN CIBULA

Case Number: CVPB08-0025945

This matter is on calendar for further proceedings on Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF JOSEPHINE CLINE

Case Number: CVPB17-0029336

This matter is on calendar for status of administration. A properly noticed Status Report has been filed. The Status Report provides the real property is for sale but fail to identify if there has been any interest in the property or when the Personal Representative believes the Estate will be in a position to close. The matter is set for **Monday, November 4, 2024, at 2:30 p.m. in Department 44** for further proceedings on Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court ORDERS the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF CANDACE COLLINS

Case Number: CVPB20-0030822

This matter is on calendar for further proceedings on the Motion to Vacate the Court's Prior Order dated June 27, 2022, and for Status of Family Court Proceedings. The Court was previously informed a pending motion in another department could make an estate proceeding unnecessary. No Status Report has been filed. No documentation has been filed to establish the property issue has been addressed in the family law case. **An appearance is necessary on today's calendar to provide the Court with a status.**

ESTATE OF ROY COOKSEY

Case Number: CVPB22-0031441

This matter is on calendar for further proceedings on the Petition for Final Distribution and Status of Administration. No Amended Account and Report and Petition for Final Distribution has been filed. No Status Report has been filed as ordered by the Court on July 1, 2024. **An appearance is necessary on today's calendar to provide the Court with a status of the Amended Account and Petition for Final Distribution.**

ESTATE OF DALE COUTTS

Case Number: 23PB-0032128

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has been properly noticed, with proof of service on file. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, October 21, 2024, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court ORDERS the personal representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. **No appearance is necessary on today's calendar.**

ESTATE OF LINDA DIESSLIN

Case Number: 24PB-0032594

This matter is on calendar for hearing on a Petition for Probate of Will. The matter does not appear to be properly noticed. Petitioner is required to list in item 8 all persons mentioned in the will, and provide them with notice. Ned Sturm is identified in the will, but is not identified in Item 8, and was not included on the proof of service. In addition, Petitioner fails to state her relationship to the decedent in item 8. Proof of publication has been filed. Proof of Holographic Instrument has been filed. The matter is continued to **Monday, October 28, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is required to file an amended Petition that addresses the above defects, and timely serve Notice for the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF CATHY ELLIOTT

Case Number: 24PB-0032353

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Inventory and Appraisal has not been filed. However, the personal representative has filed a Status Report indicating that additional time is needed before the Final Inventory and Appraisal can be filed. This matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of filing of the Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes the future court date of May 5, 2025, for Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF JULIE EMERY

Case Number: 24PB-0032605

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. The original proof of publication has not been filed. No objections have been raised. This matter is continued to **Monday, October 21, 2024, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Letters of Administration. Petitioner shall file the original proof of publication at least five days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

ESTATE OF VICTORIA FERRASCI

Case Number: 24PB-0032386

This matter is on calendar for confirmation of filing of the Inventory and Appraisal. The Partial Inventory and Appraisal was filed on September 5, 2024, and is accepted by the Court. The matter is continued to **Monday, November 18, 2024, at 2:30 p.m. in Department 44** for confirmation of the filing of the Final Inventory and Appraisal. If a Final Inventory and Appraisal cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Inventory and Appraisal can be filed. Failure to file either the Final Inventory and Appraisal or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Inventory and Appraisal, and failure to comply with the Court's order. The Court notes